

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM05
HON. Judge Ebrahim Baytieh

Date: 05/29/2026

Court Room Rules and Notices

#	Case Name	Tentative
1	<u>Clute - Trust</u>	TENTATIVE RULING <u>Case:</u> Clute – Trust 01463604 <u>Date:</u> 05/29/26 MOTION TO QUASH SUBPOENA (ROA 14) Respondent Randall R. Clute (“Respondent”) specially appears to move to quash the subpoenas issued by Petitioner Craig C. Clute (“Petitioner”) to Bank of America and Synchrony Bank. <u>Evidentiary Matters</u> Respondent’s Evidentiary Objections (ROA 42) 1-4 are sustained. The court disregards Petitioner’s late-filed declaration (ROA 44). In disregarding the untimely filed declaration, the court relied on its inherent and statutory discretion to control the proceedings to ensure the effective administration of justice as well as the Rules of Court. “First, a trial court has broad discretion to accept or reject late-filed papers. (Cal. Rules of Court, rule 3.1300(d).)” (<i>Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker</i> (2016) 2 Cal. App. 5th 252, 262.) <u>Motion</u> Respondent first moves to quash the subpoenas on the ground that they are procedurally defective because the name of the deposition officer was not included with its address and phone number. Discovery is designed to be self-executing. (<i>Townsend v. Superior Court</i> (1998) 61 Cal. App. 4th 1431, 1434.) Any discovery issues that can be resolved informally without court intervention should be. (<i>Clement v. Alegre</i> (2009) 177 Cal. App. 4th 1277, 1293.) In this case, the omission of the deposition officer’s name was a scrivener’s error that could be, and was, resolved informally. Counsel for Petitioner promptly provided the name of the deposition officer upon request and with sufficient time for Respondent to object to the use of that deposition officer if necessary. Thus, Respondent has not been prejudiced by the procedural defect. Moreover, the issue is moot since the subpoenas were re-issued with the name of the deposition officer. Respondent next moves to quash the subpoena on the grounds that Petitioner lacks standing to petition for an accounting of a revocable trust. The California Supreme Court in <i>Williams v. Superior Court</i> (2017) 3 Cal. 5th 531 (<i>Williams</i>) held that "the way to raise lack of standing is to plead it as an

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